

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 25, 2026, AT 8:30 A.M.

3. M-CV-0093144 BIRAK, SATPAL v. HERRERA, JOSE

Application For Stay of Execution

Appearances of the parties are required at the hearing.

4. M-CV-0096170 MULLER, ANDRES v. MACRAE, WESTON

Motion to Set Aside Default and/or Default Judgment

Defendant moves to set aside the default and/or default judgment entered against him on May 26, 2026.

Code of Civil Procedure section 473, subdivision (b) allows the court to set aside a default judgment “taken against the party through the party’s mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted” (Code Civ. Proc., § 473, subd. (b).) Here, defendant’s application was not accompanied by a copy of an answer or other responsive pleading to be filed therein.

Code of Civil Procedure section 473, subdivision (d) also provides the court may set aside any void judgment or order. However, defendant presents insufficient evidence that the default and/or default judgment are void.

Accordingly, defendant’s motion is denied.

5. M-CV-0096410 LHE WOODCREEK v. TORRANCE, DEBORAH

Defendant’s Demurrer to Complaint for Unlawful Detainer

Defendant demurs to plaintiff’s verified complaint on the grounds the complaint does not allege facts sufficient to state an unlawful detainer cause of action because the three-day notice to pay rent or quit is deficient. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff’s allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, “[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits.” (SC

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Manufactured Homes, Inc. v. Liebert (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.) A pleading is “uncertain” if it is ambiguous and unintelligible. (Code Civ. Proc. § 430.10, subd. (f).)

An unlawful detainer based on the failure to pay rent has several elements: (1) plaintiff owns the property; (2) plaintiff rented the property to defendant; (3) pursuant to a lease/rental agreement, defendant was required to pay rent in a specified amount to plaintiff; (4) plaintiff properly gave defendant three days written notice to pay rent or quit; (5) when the three day notice was provided, the amount stated therein was due; (6) defendant did not pay the amount stated in the three day notice within three days after service of the notice; and (7) defendant is still occupying the property. (Code Civ. Proc. § 1161, subd. (2).)

Code of Civil Procedure section 1161, subdivision (2) requires the landlord to provide a written three-day notice to pay rent or quit—after the tenant continues in possession after default of rent—that includes “the amount that is due, the name, telephone number, and address of the person to whom the rent payment shall be made, and, if payment may be made personally, the usual days and hours that person will be available to receive the payment.” (Code Civ. Proc. § 1161, subd. (2).) Moreover, the notice may allow for mailing of the past-due rental payments. (*Ibid.*) The notice must additionally provide when the notice was served to provide for the commencement of the three-day deadline and that the three-day period excludes weekends and judicial holidays. (*Eshagian v. Cepeda* (2025) 112 Cal.App.5th 433, 459.)

Here, when taking the allegations in the complaint as true, plaintiff alleges facts sufficient to state a cause of action for unlawful detainer based on the failure to pay rent. As such, the demurrer is overruled.

Defendant shall file and serve an answer or other responsive pleading 5 calendar days after service of the order after hearing. (Cal. Rules of Court, rule 3.1320, subd. (g).)

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